

Ashok Kumar Awasthi v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 24 May 2018 · Writ-C No. 18911 of 2018 · Writ-C No. 18911 of 2018 · **Writ disposed; objections to be filed; recovery to abide assessing order.**

HEADNOTE

On a challenge to joint recovery of two alleged theft assessments as violating Clause 6.8 of the U.P. Electricity Supply Code, 2005, where the licensee had treated the provisional assessment as final for want of timely objection, the Division Bench directed the consumer to file objections within ten days, required the assessing officer to pass an appropriate order in accordance with law, directed that recovery shall abide that order, and left any remaining grievance to an appeal under Section 127. The writ was disposed of without examining the assessments on merits.

FACTUAL SUMMARY

Ashok Kumar Awasthi challenged joint recovery proceedings of U.P. Power Corporation Ltd. founded on two assessment orders for alleged theft of electricity. He contended that both assessments violated Clause 6.8 of the U.P. Electricity Supply Code, 2005: the provisional assessment was not made as prescribed, and no final assessment followed after an opportunity to object. Counsel for the assessing authority stated on instructions that, as the petitioner had not filed objections in time, the provisional assessment was treated as final and recovery was initiated.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objections to provisional theft assessment; recovery to abide assessing order

HOLDING

On a challenge to joint recovery of two alleged theft assessments as violating Clause 6.8, the Court directed the consumer to file objections within ten days and the assessing officer to pass an appropriate order in accordance with law, with recovery proceedings to abide that order. ¶ 1

HOLDING-UNIT · EA2003::127

residual appeal after assessing officer's order

HOLDING

If the consumer remains aggrieved after the assessing officer's order on the objections, it is open to file an appeal before the appropriate forum under Section 127 of the U.P. Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment On a challenge to joint recovery of two alleged theft assessments as violating Clause 6.8 of the U.P.. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal On a challenge to joint recovery of two alleged theft assessments as violating Clause 6.8 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TWO THEFT ASSESSMENTS VIOLATED CLAUSE 6.8 OF THE SUPPLY CODE
¶ 1

NOT DECIDED — WHETHER TREATING THE PROVISIONAL ASSESSMENT AS FINAL FOR WANT OF TIMELY OBJECTION WAS LAWFUL

NOT DECIDED — MERITS OF THE ALLEGED THEFT ASSESSMENTS AND THE JOINT RECOVERY

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.